



Crete Township Community Center Usage Agreement

Person or Group Using Facility ("User") _____

Contact Person _____

Address _____

Phone: Cell: _____ Work: _____ Home: _____

Date(s) of Usage: _____

Time(s) of Usage (event must end by 10:00 pm) _____

Usage Fee (See Schedule 1) _____

Security Deposit _____

Usage Fee and Security Deposit are payable in advance. Two separate checks payable to "Crete Township". The check for the security deposit will be returned upon final inspection provided the Township Community Center (the "Community Center") is clean, in good order and sustained no damages. Usage fees are subject to Crete Township Board discretion.

Comments _____

ALL POLICIES AND REGULATIONS OF THE STATE OF ILLINOIS, CRETE TOWNSHIP APPLY TO EACH MEMBER OF THE USER'S GROUP WHICH AGREE TO ABIDE BY THE CRETE TOWNSHIP COMMUNITY CENTER BUILDING USAGE POLICIES & PROCEDURES, AS WELL AS THE FOLLOWING RULES AND TERMS

General Rules of Use:

1. Trash taken to outside dumpster and outside area picked up
2. Tables & chairs replaced to original location
3. Floors swept clean of debris
4. Turn off all lights
5. No alcohol allowed anywhere on Crete Township property
6. No smoking allowed in the Community Center
7. No animals allowed in the Community Center
8. No nails, tape and/or pins in the walls or fixtures
9. Do not leave children unattended
10. No firearms and/or weapons of any kind are allowed on Township property

Additional Terms:

- Community Center Usage shall be on a first come, first serve basis and will not be deemed valid until the Usage Agreement is approved by the Crete Township Board.
- A completed Usage Agreement and payment must be received by Crete Township from the User's contact person to be considered for approval.
- Community Center availability is by appointment only and on a reserved time basis as determined and approved by the Crete Township Board.
- Crete Township reserves the right to terminate this agreement as its sole discretion at any time without notice.
- Full payment and deposit, if applicable, is due in its entirety with the completed Usage agreement form.
- The Community Center Usage includes the use of tables and chairs to be set up by User. All tables and chairs are to be returned to their original storage area or configuration at the end of the Usage. Violation of this subject to a return to storage fee of \$250.
- The Community Center space being used must left clean and all debris and trash taken to the outside dumpsters. Violations are subject to a \$250 cleaning fee.
- Crete Township is smoke-free, and the User is responsible for compliance to all regulations by event attendees and guests.
- Alcoholic beverages are never allowed anywhere in the Community Center campus.
- Crete Township restricts the use of the premises to public or private events and is not intended as a business venue. The charging of admission or use as a profit-making venue is restricted. Charitable events or benefits require prior approval and proper documentation of event proceeds. Caucuses organized by recognized political parties are allowed to meet at the Community Center without charge, however, a Building Usage application must be submitted and prior approval from the Crete Township Board must first be obtained.
- All health department regulations must be followed by the User and/or caterer providing any food and beverage. Crete Township is in no way responsible for any permits or licenses required. All remaining refuse from the food and beverage items and incidental utensils, plates, paper and plastic products must be properly disposed of in tied trash bags and properly deposited into the dumpsters located in the back of the property.
- User shall monitor the conduct of guests to insure the conduct does not damage the Community Center, any other Township property, adjacent properties, or otherwise disturb neighboring residents or farm property.
- Use of amplified sound systems is prohibited unless expressly approved by the Crete Township Board.
- User agrees to comply with all existing Will County ordinances with regard to noise levels and agree to be courteous to neighbors.
- For usage for events of 100 people or more, User must provide security and traffic control at their sole expense and must obtain approval of same from the Crete Township Board.

NATURE OF OCCUPANCY. The User agrees to comply with all applicable federal, state, county and local laws and ordinances relating to matters covered by this Usage Agreement. The Township assumes no responsibility for any loss, damage or casualty however caused to any personal property.

DAMAGES. The User shall be responsible to the Township for all costs of repair, clean-up, and replacement for any damages caused as a result of User's use of the Community Center or any other Township property.

In the event the Township invoices User for any such charges, the User shall pay the invoice within ten (10) days.

ACCESS. The User's access to the Community Center may be limited as deemed necessary by the Township, including, but not limited to, limiting hours of use, and/or prohibition of access to portions or all of the Community Center (i.e., the Road District garage, etc.).

INDEMNIFICATION. The User agrees to indemnify, defend, and hold the Township, its officers, agents, employees, and attorneys (including the Crete Township Road District) harmless from any and all losses, claims, demands, damages, liability, any other actions of any kind, expenses (including attorney fees), fines, and/or penalties arising out of or related in any manner to injuries, death, or losses to any person or to any personal property, or damages to the Township's Community Center and property, however occurring and/or arising out of and/or related in any way to this Usage Agreement and Usage of the Community Center. The User shall also pay the Township for all of the Township's attorney fees incurred in enforcing any obligation under this paragraph and Agreement. This paragraph shall survive the expiration of this Agreement.

RELEASE OF LIABILITY. The User releases the Township, its employees, agents, successors, and assigns (including the Crete Township Road District) from any and all liability for personal injuries and/or death to persons including but not limited to User, User's Invitees, and/or User's guests, arising out of the User's use of the Community Center. The only insurance that covers the User is that purchased by User. User understands this release of the Township's liability is a bargained-for condition of this Usage Agreement and User's consent to enter into this Usage Agreement.

TOWNSHIP MAY ENTER. While respecting the User's right to enjoy the Community Center for the purposes set forth in this Agreement, the Township, its employees or agents (including the Crete Township

Road District) shall have the right to enter the Community Center during the event contemplated in this Usage Agreement.

GOVERNING LAW; VENUE. This Usage Agreement shall be governed by the laws of the State of Illinois without regard to its conflict of laws provisions. Any dispute between the parties regarding this Usage Agreement shall be filed in the Circuit Court of Woodford County, Illinois.

ENTIRE AGREEMENT. This Usage Agreement is the entire agreement between the parties and supersedes any and all prior oral and/or written representations or agreements and may be modified only in writing signed by the Township and the User.

By signing below, the following represent they have authority to enter into this Agreement on behalf of the entities noted above and that the User and its representatives agree to comply with the term so this agreement and with the Crete Township Community Center Building Usage Policies and Procedures.

ACKNOWLEDGED & AGREED TO BY USER:

User Name: _____

Signature of User Representative _____ Date _____

Name: _____ Title: _____

ACKNOWLEDGED BY CRETE TOWNSHIP:

Signature of Township Representative _____ Date _____